

25NWCV02465 25NWCV02465

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-07-09

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Case Number: 25NWCV02465 Hearing Date: July 9, 2026 Dept: R

#13

NATIONAL COMMERCIAL RECOVERY, INC. v. FRESH AMERICAN
PRODUCE, INC., ET AL.

CASE NO.: 25NWCV02465

HEARING: Thursday, July
9, 2026, at 9:30 AM

Cross-Defendant LM TROPICAL LLC's Unopposed Motion to Set
Aside Default is GRANTED.

Cross-Defendant's Proposed Answer attached as Exhibit B is NOT
DEEMED SERVED AND FILED as of the hearing date. Moving Party is ORDERED
to FILE and SERVE the Answer within 5 days from the date of the
Court's issuance of this Order.

Moving Party to give notice.

Background

On July 8, 2026, Plaintiff NATIONAL COMMERCIAL RECOVERY,
INC. ("Plaintiff") filed a Complaint against Defendants FRESH AMERICAN PRODUCE,
INC.; TANIA PALACIOS aka MARIA CONSUELO CERRILLO GONZALEZ; MARIA CATALINA
GONZALEZ; and DOES 1 through 10, inclusive.

On August 25, 2025, Cross-Complainant FRESH AMERICAN

PRODUCE, INC. ("Cross-Complainant") filed a Cross-Complaint against Cross-Defendants LM TROPICAL LLC ("Cross-Defendant"); LUIS MIGUEL RODRIGUEZ; and ROS 1 through 25, inclusive.

Cross-Defendant's default was entered on April 22, 2026. As of July 9, 2026, default judgment has not been entered.

Motion to Set Aside

Cross-Defendant timely filed the subject motion on June 2, 2026. Cross-Defendant now moves to set aside the default under CCP §473(b).

CCP § 473(b), states that "[t]he court may...relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect."

Cross-Defendant contends it never received a copy of the summons/cross-complaint. Cross-Defendant contends it did not learn of this case until default was entered against it.

The policy of hearing cases on their merits is well-established. (See, e.g., *Berman v. Klassman* (1971) 17 Cal.App.3d 900.) Given the liberality associated with Motions to Set Aside under CCP §473(b), the Court finds Plaintiff's Declaration sufficient to warrant to relief. The law favors trials on the merits. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 980.)

The Motion is GRANTED. The April 22, 2026, default is SET ASIDE and VACATED.